

The ‘Global Pact for the Environment’ – A New Instrument to Protect the Planet?

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Abstract

This article aims to shed light on the newly proposed initiative to negotiate a ‘Global Pact for the Environment’. After an overview of the Pact, the article discusses the main provisions of the current draft of the Pact, such as the right to live in an ecologically sound environment, the codification of existing environmental principles and the introduction of new principles. The article examines the relationship between the Pact and existing multilateral environmental agreements and institutions and comes to the conclusion that the stated intention for the Pact to serve as a ‘legal umbrella’ for the existing multilateral environmental treaties raises both political as well as legal questions. Furthermore, the Pact possesses only limited potential to strengthen international environmental law. Nonetheless, the initiative has the potential to trigger reforms in international environmental law by putting the protection of the environment at the top of the global agenda.

Keywords

International environmental law and policy – global environmental governance – principles of international environmental law – human rights and the environment – rights-based approach

* The views expressed in this article are those of the author and do not necessarily reflect those of the Ministry.

1 Introduction

Exactly 25 years after the Rio Summit, an initiative that aims to codify the major environmental principles of the Rio Declaration on Environment and Development¹ has seen the light of day. The so-called ‘Global Pact for the Environment’,² drafted by the French legal think tank *club des juristes* under the auspices of Laurent Fabius³ achieved immediate support by French President Emmanuel Macron at its launch at the Sorbonne University in Paris on 24 June 2017.⁴ As promised at the Sorbonne, President Macron presented the initiative in the margins of the United Nations General Assembly opening week in September 2017 to the international community, including around 40 Heads of States or Government.⁵ President Macron’s ambitious goal is to finalize the negotiations in 2020.

The term ‘Global Pact for the Environment’ does not define the legal nature of the instrument. The initial aim of the initiative is, however, to create an overarching legally binding treaty comprising major principles of international environmental law.⁶ Furthermore, the Pact – which creates a universal human right relating to the environment – is intended to join the ranks of the two major international human rights treaties, the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights.⁷

1 ‘Rio Declaration on Environment and Development’, 13 June 1992, UN Doc. A/CONF.151/26. Rev.1, (‘Rio Declaration’).

2 The Preliminary Draft of the ‘Global Pact for the Environment’ (June 24, 2017) is available at: <http://pactenvironment.emediaweb.fr/wp-content/uploads/2017/07/Global-Pact-for-the-Environment-project-24-June-2017.pdf> [last visited December 7, 2017].

3 Laurent Fabius is currently the President of the French Constitutional Court (*Conseil Constitutionnel*). As former French Minister of Foreign Affairs, Fabius presided the UNFCCC COP 21 leading to the adoption of the Paris Agreement.

4 S. Roger, Macron s’engage à défendre le projet de « pacte mondial pour l’environnement », *Le Monde*, June 24, 2017, http://www.lemonde.fr/climat/article/2017/06/24/macron-promet-de-porter-le-projet-de-pacte-mondial-pour-l-environnement-devant-l-onu_5150639_1652612.html [last visited December 3, 2017].

5 A video documentation of the summit in New York is available at: <http://webtv.un.org/watch/summit-to-launch-the-global-pact-for-the-environment/5580528902001/> [last visited December 5, 2017].

6 *Club des Juristes*, White Paper – Towards A Global Pact for the Environment, September 2017 (‘White Paper’), pp. 16 and 32, available at: http://www.leclubdesjuristes.com/wp-content/uploads/2017/05/CDJ_Pacte-mondial-pour-l-environnement_Livre-blanc_UK_web.pdf [last visited December 8, 2017].

7 *Id.* at p. 4.

The idea of codifying international environmental principles in a legally binding document is not new. In the run-up to the Rio Summit of 1992, the World Commission on Environment and Development in its famous Brundtland Report of 1987 suggested that the General Assembly commits itself 'to prepare a universal Declaration and later a Convention on environmental protection and sustainable development'.⁸ The Rio Declaration on Environment and Development⁹ with its 27 principles as well as the two prominent conventions in the areas of climate change and biodiversity, the United Nations Framework Convention on Climate Change (UNFCCC) and the Convention on Biological Diversity (CBD) were adopted at the summit; however, an overarching convention on environmental protection and sustainable development has not followed since.

Since the Brundtland Report, civil society organisations such as the Earth Charter Initiative¹⁰ have made the case for the codification of environmental principles. The 'Draft International Covenant on Environment and Development' of the International Union for Conservation of Nature (IUCN)¹¹ constitutes the most advanced attempt to do so. The IUCN Draft Covenant has been developed by a large number of international experts through several drafting rounds and provides a comprehensive compilation of international environmental principles and rules that will be a valuable reference point for negotiations on a Global Pact for the Environment.

2 Overview of the Draft Pact

The draft Pact consists of 26 articles in total. In the first provisions the draft Pact provides for the right to an ecologically sound environment (Article 1) and a duty to take care of the environment (Article 2). Furthermore, the Pact undertakes to codify existing environmental principles, such as the principles of prevention and precaution (Articles 5 and 6) and ensuing obligations. Alongside to an obligation to ensure adequate remediation of environmental damages

8 See Chapter 12 para. 86 of the Report of the World Commission on Environment and Development, 'Our Common Future', 10 March 1987.

9 *Supra* note 1. The Rio Declaration is not legally binding and falls under the so-called 'soft law'.

10 See <http://earthcharter.org> [last visited December 7, 2017].

11 See the latest fifth Edition of the IUCN 'Draft International Covenant on Environment and Development' of 2015 at <https://portals.iucn.org/library/node/46647> [last visited December 7, 2017].

(Article 7), the Pact enshrines a general obligation of States to cooperate in environmental matters (Article 18). The Pact also comprises several broader concepts of international environmental law, e.g. sustainable development (Article 3), intergenerational equity (Article 4), the polluter-pays principle (Article 8) and the principle of common but differentiated responsibilities and respective capabilities, in the light of different national circumstances (Article 20). The latter article also includes the obligation to give special attention to the situation of developing countries, particularly least developed and most environmentally vulnerable countries. In its Articles 9 to 11 the draft Pact contains the three pillars of environmental democracy, namely access to information, public participation and access to justice. Article 12 guarantees freedom of expression and information in environmental matters and, together with Article 13 addresses education and research in environmental matters. The draft Pact also contains new environmental principles, such as the effectiveness of environmental norms (Article 15), the principle of resilience (Article 16) and the principle of non-regression (Article 17). Article 19 refers to the obligations under international law to protect the environment in armed conflicts.

The last six articles of the draft Pact contain the final clauses including the establishment of a compliance committee of a facilitative nature to oversee the implementation of the Pact.

Since there is extensive literature on each of the rights and principles in the Pact, this article aims to give an overview of the main provisions in the context of existing international environmental law.

3 Right to an Ecologically Sound Environment and Duty to Take Care of the Environment

The most prominent and probably also one of the more controversial provisions is Article 1, according to which '[e]very person has the right to live in an ecologically sound environment adequate for their health, well-being, dignity, culture and fulfilment'. This article purports a new universal human right relating to the environment. The development of such a human right has been discussed since the Stockholm Declaration of 1972 proclaimed in its Principle 1 that 'Man has the fundamental right to freedom, equality and adequate conditions of life, in an environment of a quality that permits a life of dignity and well-being, and he bears a solemn responsibility to protect and improve the environment for present and future generations.'¹² The subsequent universal

¹² 'Declaration of the United Nations Conference on the Human Environment', Stockholm, 16 June 1972, UN Doc.A/CONF.48/14/Rev.1, ('Stockholm Declaration').

declarations on environmental matters including the Rio Declaration, however, employ more cautious language and refrain from referring to a human right.¹³ Whereas a human right relating to the environment would be a novel development at the global level, environment-related human rights have already been incorporated, to some extent, in regional human rights conventions, e.g. in Article 24 of the African Charter on Human and Peoples' Rights of 1981¹⁴ and Article 11 of the Protocol of San Salvador of the American Convention on Human Rights.¹⁵ In Europe, even in the absence of an explicit reference to the environment in the European Convention on Human Rights,¹⁶ the European Court of Human Rights has developed jurisprudence on the right to private and family life in Article 8 of the Convention in a way that provides a certain level of environmental protection.¹⁷

On national level, some States have introduced human rights relating to the environment in their constitutions.¹⁸ This is for example the case for the

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- 13 S. Vöneky & F. Beck, *Umweltschutz und Menschenrechte*, in: A. Proelß (ed.), *Internationales Umweltrecht*, 2017, p. 132, 140. Principle 1 of the Rio Declaration states: 'Human beings are at the centre of concerns for sustainable development. They are entitled to a healthy and productive life in harmony with nature.'
 - 14 African Charter of Human and Peoples' Rights, 27 June 1981, 21 ILM 58 (1982) ('African Charter'). Article 24 of the African Charter provides for a collective right ('All peoples shall have the right to a general satisfactory environment favourable to their development'). The environment-related jurisprudence of the African Commission on Human and Peoples' Rights is predominantly based on the individual right to health in Article 16 of the African Charter; see P.-M. Dupuy & J.E. Viñuales, *International Environmental Law*, 2015, pp. 310–311.
 - 15 Additional Protocol to the American Convention on Human Rights in the Area of Economic, Social and Cultural Rights, 16 November 1988, OAS Treaty Series No. 69 ('San Salvador Protocol'). Article 11 para. 1 reads: 'Everyone shall have the right to live in a healthy environment and to have access to basic public services.' However, Article 11 of the San Salvador Protocol does not allow for individual petitions to the Inter-American Court of Human Rights (see Article 19 para. 6 of the San Salvador Protocol). Individual complaints related to environmental matters are mostly based on the right to property; see Dupuy & Viñuales, *supra* note 14, at pp. 309–310 and p. 313.
 - 16 Convention for the Protection of Human Rights and Fundamental Freedoms, 4 November 1950, 213 UNTS 221 ('European Convention on Human Rights').
 - 17 Ground-breaking: ECtHR Judgement *López Ostra v. Spain*, 9 December 1994, Application no. 16789/90. A compendium of the environment-related case law of the ECtHR is available at: http://www.echr.coe.int/Documents/FS_Environment_ENG.pdf [last visited December 3, 2017]. According to P. Birnie, A. Boyle & C. Redgwell, *International Law and the Environment*, Third Edition 2009, p. 300, '[t]he European convention fully guarantees everything a right to a healthy environment would normally be thought to cover'.
 - 18 Vöneky & Beck, *supra* note 13, at p. 164 with further references.

French constitutional *Charte de l'environnement*,¹⁹ which served as a source of inspiration for the authors of the Pact.²⁰ Understanding that the environment as such is a common rather than an individual good, other States,²¹ as well as the European Union in its Charter of Fundamental Rights²² stipulate environmental protection as a constitutional objective without linking it to an individual right.²³

As a general observation, none of these existing instruments grants a human right *to individuals* to prevent environmental degradation *per se* without linking it to the conditionality of an impairment of an individual right, be it the right to property or health and well-being.²⁴

Article 1 of the draft Pact refers to an 'ecologically sound environment' that needs to be 'adequate for [the person's] health, well-being, dignity, culture and fulfilment'. Although the phrasing 'adequate' is ambiguous, it seems to condition the degradation of the environment with the impairment of an individual right, namely the impairment of one's 'health, well-being, dignity, culture and fulfilment'. With the impairment of the personal 'fulfilment' being one possible prerequisite, the circumstances in which the right could be triggered appear to

19 LOI constitutionnelle n° 2005–205 du 1er mars 2005 relative à la Charte de l'environnement; Article 1 of the *Charte de l'environnement* reads: 'Chacun a le droit de vivre dans un environnement équilibré et respectueux de la santé.'

20 'White Paper', *supra* note 6, at pp. 20, 32 and 35.

21 See for example Article 20a of the German Constitution (Grundgesetz) which reads: 'Mindful also of its responsibility toward future generations, the state shall protect the natural foundations of life and animals by legislation and, in accordance with law and justice, by executive and judicial action, all within the framework of the constitutional order.' For further reading on the discussions in Germany see R. Scholz in: Th. Maunz & G. Dürig (eds.), Grundgesetz-Kommentar, 81. EL 2017, Art. 20a GG, para. 12.

22 See Article 37 of the Charter of Fundamental Rights of the European Union which reads: 'A high level of environmental protection and the improvement of the quality of the environment must be integrated into the policies of the Union and ensured in accordance with the principle of sustainable development.'

23 For further reading on the rights-based approach see F. Francioni, International Human Rights in an Environmental Horizon, EJIL Vol. 21 2010, pp. 41–55; A. Boyle, Human Rights and the Environment: Where Next?, EJIL Vol. 23 2012, pp. 613–642; J.G. Merrills, Environmental Rights in: D. Bodansky, J. Brunnée & E. Hey (eds.), The Oxford Handbook of International Environmental Law, 2007, pp. 664–680 with further references.

24 A. Boyle, *supra* note 23, at p. 615; For further reading on the 'extent' of environmental protection afforded by existing human rights instruments see Dupuy & Viñuales, *supra* note 14, at pp. 319 et seq.

be quite broad in contrast to more limited health or property-related considerations of the existing environment-related human right jurisprudence.²⁵

The provision grants the right to live in an ecologically sound environment to 'each person'. It remains unclear whether the intention is to protect Parties' nationals, additionally the nationals of other State Parties²⁶ or even nationals of non-State Parties who claim to be impaired in their right to live in an ecologically sound environment by the action or inaction of a State Party.²⁷

The language of Article 1 establishes a rather far-reaching environment-related human right; however, the draft Pact does not resolve how this right will be implemented. It neither foresees an individual complaint mechanism nor does it explicitly oblige State Parties to guarantee such a right (because it doesn't address States, but individuals directly). Therefore, Article 1 might either be understood as creating a right that should be invoked by the Parties' national courts directly or – without creating a new right – as a general obligation of States to ensure that their inhabitants can live in an ecologically sound environment.²⁸ According to the 'White Paper', the idea of the authors is that the rights and principles in the Pact are to be invoked by the national courts directly.²⁹ The direct application of a norm of international law, however, depends on national constitutional circumstances and the norm being characterised as 'self-executing' which requires a certain degree of precision of the norm.³⁰ Furthermore, the direct application of a treaty can usually be excluded by reservation to a treaty.³¹

25 For instance, the pleasure to take a walk in a particular environmental area might lead to the impairment of one's personal fulfilment if changes to this area occur.

26 S. Biniaz, 10 Questions to Ask About the Proposed „Global Pact for the Environment“ (August 2017), p. 4, <http://columbiaclimatelaw.com/files/2017/08/Biniaz-2017-08-Global-Pact-for-the-Environment.pdf> [last visited December 3, 2017].

27 For further reading on the extraterritorial application of Human Rights Treaties in environmental cases see *Birnie, Boyle & Redgwell*, *supra* note 17, at pp. 299 et seq.

28 Following the idea of Article 14 para. 1 IUCN Draft Covenant (*supra* note 11) which reads: 'Parties undertake to achieve progressively the full realization of the rights of all persons to live in an ecologically sound environment adequate for their development, health, well-being and dignity. They shall devote immediate and special attention to the satisfaction of basic human needs.'

29 'White Paper', *supra* note 6, at pp. 32 et seq.

30 A. Aust, *Handbook of International Law*, 2005, p. 80.

31 *Id.* at p. 68; R. Geiger, *Grundgesetz und Völkerrecht*, 6. Aufl. 2013, pp. 166 et seq. Unlike many multilateral environmental agreements, the draft Pact does not exclude reservations.

Against the background that the content of a 'sound environment' to be guaranteed remains unclear and bearing in mind that the creation of fundamental rights touches the core of national constitutional orders, the insertion of an enforceable human right to live in an ecologically sound environment in the Pact appears to be highly controversial.

Article 2 of the draft Pact also addresses individuals directly, but rather than creating a right it imposes a duty, on every person, to take care of the environment. This mirrors the approach in Article 2 of the French *Charte de l'Environnement*.³² As international law primarily addresses States, imposing obligations on individuals that go beyond those of international crimes would be an innovative approach, an analysis of which is beyond the scope of this article.³³

4 Codification of Existing Principles of International Environmental Law and Policy

Beside the right and the duty in the first two Articles, the main body of the draft Pact codifies existing principles of international environmental law and policy.

4.1 *Prevention, Precaution and Remediation of Environmental Harm*

Articles 5, 6 and 7 of the draft Pact address the prevention of environmental harm, the need for precaution when there is a risk of serious or irreversible damage and the remediation of environmental damage.

The principle of prevention enshrined in Article 5 of the draft Pact can be described as the cornerstone of international environmental law.³⁴ It is embodied in the Stockholm and Rio Declarations,³⁵ but has most of all been recognized and advanced as customary law by the International Court of Justice in its jurisprudence.³⁶ The principle does not create a 'prohibition of

32 *Supra* note 19; Article 2 of the *Charte de l'environnement* reads: 'Toute personne a le devoir de prendre part à la préservation et à l'amélioration de l'environnement.'

33 For an introduction to this question see *A. Clapham, The Role of the Individual in International Law*, EJIL Vol. 21 2010, pp. 25–30.

34 *Dupuy & Viñuales, supra* note 14, at p. 35.

35 Both the Stockholm Declaration (Principle 21) and the Rio Declaration (Principle 2) define the obligation to prevent harm as a restriction of the sovereign right to exploit own resources.

36 See *Gabčíkovo-Nagymaros Project (Hungary v. Slovakia)*, Judgment, ICJ Reports 1997, p. 7; *Pulp Mills on the River Uruguay (Argentina v. Uruguay)*, Judgment, ICJ Reports 2010, p. 14;

environmental harm', but rather a duty to ensure that such harm is prevented.³⁷ This implies an obligation of due diligence of the States as well as procedural obligations.³⁸ The draft Pact covers the acknowledged obligation to conduct an environmental impact assessment³⁹ as well as the acknowledged obligation of due diligence without further clarifying their interlinkages and differentiations and using slightly different terms than the ICJ in its judgments.⁴⁰ Besides, it lacks the recognized duty to inform and consult in good faith with the affected State on activities that, as the environmental impact assessment had confirmed, have a significant adverse transboundary environmental effect.⁴¹ Article 7 para. 2 of the draft Pact addresses such obligation only in relation to natural disasters or emergencies.⁴²

Article 5 para. 2 of the draft Pact applies not only to damage to the environment of other State Parties, but also to damage to the environment of areas beyond their national jurisdiction. Thereby the article follows the reasoning of the ICJ in its Advisory Opinion on the *Legality of Nuclear Weapons*.⁴³ Article 5 para. 2 is a Party-to-Party obligation in a transboundary context, whereas Article 5 paras. 3 and 4 could be understood as establishing obligations, which

Certain Activities carried out by Nicaragua in the Border Area (Costa Rica v. Nicaragua) and Construction of a Road in Costa Rica along the San Juan River (Nicaragua v. Costa Rica), Judgment, ICJ Reports 2015, p. 665.

37 On the evolution from 'no harm' to 'prevention' see Dupuy & Viñuales, *supra* note 14, at pp. 55 et seq.

38 Birnie, Boyle & Redgwell, *supra* note 17, at pp. 137 et seq.

39 See Article 5 para. 3 of the draft Pact: 'They shall take the necessary measures to ensure that an environmental impact assessment is conducted prior to any decision made to authorise or engage in a project, an activity, a plan, or a program that is likely to have a significant adverse impact on the environment.'

40 See Article 5 para. 2 of the draft Pact: 'Parties have the *duty to ensure* that activities under their jurisdiction or control do not cause damage to the environments of other Parties or in areas beyond the limits of their national jurisdiction.' and Article 5 para. 4: 'In particular, States shall keep under surveillance the effect of an above-mentioned project, activity, plan, or program which they authorise or engage in, *in view of their obligation of due diligence*.'

41 *Certain Activities carried out by Nicaragua in the Border Area (Costa Rica v. Nicaragua) and Construction of a Road in Costa Rica along the San Juan River (Nicaragua v. Costa Rica)*, Judgment, ICJ Reports 2015, pp. 665, 707 et seq. para. 104.

42 Thereby codifying Principle 18, but not Principle 19 of the Rio Declaration.

43 *Legality of the Threat or Use of Nuclear Weapons, Advisory Opinion*, ICJ Reports 1996, p. 226; P. Sands & J. Peel, *Principles of International Environmental Law*, Third Edition 2012, pp. 195 et seq.; Dupuy & Viñuales, *supra* note 14, at p. 57.

not only apply to transboundary impacts, but also to purely national cases.⁴⁴ The same scope of application (transboundary and national) seems to be chosen for the general provision in Article 5 para. 1 ('The necessary measures shall be taken to prevent environmental harm.'). This provision can either be understood as a generic obligation or as a chapeau for the provisions in the following paragraphs.

Altogether, the wording of Article 5 leads to uncertainty whether the draft Pact intends to codify existing obligations of international customary law or whether it intends to alter them. In any case, with the provisions remaining relatively abstract, the draft Pact misses the chance to specify existing obligations of international law regarding the prevention of environmental harm and the consequences of infringements against them. Moreover, with regard to the obligation to conduct an environmental impact assessment in a transboundary context, the draft Pact does not decide whether the specific obligations of the Espoo Convention⁴⁵ would prevail or not.⁴⁶

While the principle of prevention is undisputedly a principle of international environmental law, the precise extent of the customary status and the particular content of the precautionary principle are still under debate.⁴⁷ The obligations of States relating to precaution are highly context-specific. They depend on the activity to be regulated and its potential threat to the environment. Consequently, references to the precautionary principle differ between environmental treaties depending on the subject to be regulated.⁴⁸ Nevertheless, at its core, the principle can be described as an obligation to assess and manage

44 According to the 'White Paper', *supra* note 6, at p. 40, Article 5 has a 'trans-border and internal dimension'. On the possible application of the principle of prevention in a national context, see *Sands & Peel*, *supra* note 44, at p. 201.

45 Convention on Environmental Impact Assessment in a Transboundary Context, 1989, UNTS 309 (Espoo Convention).

46 Another possible conflict could arise between Article 5 and preventive obligations contained in other international agreements, e.g. Articles 194 and 206 of the UN Convention on the Law of the Sea ('UNCLOS') and Article 4 of the Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and their Disposal, 1673 UNTS 57 ('Basel Convention'). On the relationship between the Pact and other international agreements, see *infra* Section 7.

47 *Dupuy & Viñuales*, *supra* note 14, at p. 61; *Sands & Peel*, *supra* note 44, at p. 218. Besides, the term 'precautionary principle' compared to 'precautionary approach' is under debate; on the insignificance of this debate see *Birnie, Boyle & Redgwell*, *supra* note 17, at p. 155.

48 *Biniat*, *supra* note 27, at pp. 6–7. See for example Article 3 UNFCCC, Article 3 of the Protocol to the Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter of 1996 ('London Convention') and Article 8 para. 7 of the Stockholm Convention on Persistent Organic Pollution of 2001 ('Stockholm Convention').

risks despite remaining scientific uncertainties.⁴⁹ Article 6 of the draft Pact, which codifies the precautionary principle, is based on the most accepted formulation of the principle of precaution, namely the definition in Principle 15 of the Rio Declaration.⁵⁰ However, it only defines the principle and does not require States to *apply* the precautionary principle.⁵¹ Hence, Article 6 does not imply any action States have to undertake (e.g. an appropriate risk-management) when there are serious or irreversible threats to the environment. The draft Pact could therefore be understood as allowing, but not requiring States to act, unless Article 6 is applied in conjunction with the obligations in Article 5.⁵²

Article 7 para. 1 addresses the situation when environmental damage has occurred. According to this provision, '[t]he necessary measures shall be taken to ensure an adequate remediation of environmental damages.' As the obligation to take 'necessary measures' does not depend on any infringement of existing rules of international law, it does not appear to be aimed at establishing State liability for environmental damage.⁵³ The most probable interpretation of Article 7 para. 1 is close to the content of Rio Principle 13, which asks States to 'develop national law regarding liability and compensation for the victims of pollution and other environmental damage'.⁵⁴

49 For more precise definitions see *Sands & Peel*, *supra* note 44, at p. 222; *Birnie, Boyle & Redgwell*, *supra* note 17, at pp. 155 et seq.; *C. Erben*, *Das Vorsorgegebot im Völkerrecht*, 2005, pp. 260 et seq.

50 *Dupuy & Viñuales*, *supra* note 14, at p. 63; Principle 15 of the Rio Declaration reads: 'In order to protect the environment, the precautionary approach *shall be widely applied* by States according to their capabilities. Where there are *threats* of serious or irreversible damage, lack of *full* scientific certainty shall not be used as a reason for postponing *cost-effective* measures to prevent environmental degradation.' Article 6 of the draft Pact reads: 'Where there is a *risk* of serious or irreversible damage, lack of scientific certainty shall not be used as a reason for postponing the adoption of *effective and proportionate* measures to prevent environmental degradation.'

51 Article 6 only includes the second sentence of Principle 15 of the Rio Declaration, but not its first sentence, according to which 'the precautionary approach *shall be widely applied* by States'.

52 According to the 'White Paper', *supra* note 6, at p. 41 '[t]he Pact adopts a form of the precautionary principle which *guarantees its adequate articulation with the prevention principle*.' Article 6, however, does not entail a reference to the principle of prevention in Article 5.

53 Bearing in mind the works of the International Law Commission resulting in the adoption of the 59 'Articles on Responsibility of States for Internationally Wrongful Acts' in 2001, the codification of a liability clause would be a rather challenging task.

54 This corresponds to the reasoning explained in the 'White Paper', *supra* note 6, at p. 41: 'The Rio Declaration mentions the responsibility principle, which implies that *States ensure the existence of law relating to reparation* of environmental damages.'

4.2 *Equity and Sustainable Development*

The draft Pact furthermore codifies a number of equity-related environmental principles and concepts, namely the 'polluter-pays principle' (Article 8 of the draft Pact), the 'principle of intergenerational equity' (Article 4 of the draft Pact) and the 'diversity of national situations' including the principle of 'common but differentiated responsibilities and respective capabilities in the light of different national circumstances' (Article 20 of the draft Pact). Article 3 para. 2 of the draft Pact undertakes to codify the 'principle of sustainable development' by asking Parties to pursue sustainable development. Article 3 para. 1 obliges Parties to integrate environmental protection into policy action.⁵⁵

The draft Pact undertakes to codify some of the fundamental environmental principles and concepts of international environmental law and policy. Other core equity-related environmental principles, such as the equitable use of shared or common natural resources⁵⁶ are not part of the draft Pact. Nor are the concepts related to a common responsibility for collective interests and goods ('common areas', 'common heritage' and 'common concern').⁵⁷

As the principles themselves do not entail specific obligations (with the aforementioned exception requiring the integration of environmental protection into policies), their main function will likely be to guide policy development. In that sense, their codification adds little value to the existing state of play. Already now, although only enshrined in soft law instruments like the Rio Declaration, these principles have an important policy-guiding function.⁵⁸ With regard to the provision in Article 3 para. 2 stating that 'Parties shall pursue sustainable development', the crucial question how to balance social, environmental and economic considerations,⁵⁹ is left at the discretion of the Parties. As one of the major challenges of environmental policy is to achieve a

55 As the obligation in Article 3 para. 1 refers specifically to the aim 'to promote the fight against climate change, the protection of oceans and the maintenance of biodiversity', a possible conflict with the provisions in Article 4 f) UNFCCC and Article 6 b) CBD, which contain resembling, but not identical obligations, may arise.

56 See *Sands & Peel*, *supra* note 44, at pp. 213 et seq.

57 On their importance to address global environmental concerns see *J. Brunnée*, Common Areas, Common Heritage, and Common Concern, in: *D. Bodansky, J. Brunnée & E. Hey* (eds.), *The Oxford Handbook of International Environmental Law*, 2007, pp. 551–573.

58 *Biniarz*, *supra* note 27 at p. 2.

59 *D.B. Magraw & L.D. Hawke*, Sustainable Development, in: *D. Bodansky, J. Brunnée & E. Hey* (eds.), *The Oxford Handbook of International Environmental Law*, 2007, pp. 614, 619 and 637. They define the four core elements of sustainable development as 'inter-generational equity; intra-generational equity; the need to protect the environment; the need to integrate economic, social, and environmental policies'.

fair balance between the three pillars of sustainable development, more guidance how this can be better accomplished, would substantially improve the actual implementation of this principle. Such guidance could for example be given by a provision foreseeing that long-term benefits of environmental action as well as costs of inaction shall be taken into account.

Beside the policy-guiding function, the principles above could also have a normative, in particular an interpretative function, e.g. in relation to existing agreements, which will be discussed further in Section 7 of this article. Insofar as Article 20 para. 2 of the draft Pact is concerned ('Account shall be taken, *where appropriate*, of the Parties' common but differentiated responsibilities and respective capabilities, in light of different national circumstances.'), it remains unclear whether the *appropriateness* has already been adequately taken into account by existing agreements or whether this question will anew be raised for those agreements and their implementation.⁶⁰

4.3 Participation

The draft Pact also covers the principles of the so-called 'environmental democracy', namely 'access to information' (Article 9), 'public participation' (Article 10) and 'access to environmental justice' (Article 11). Enshrined in Principle 10 of the Rio Declaration, these three pillars of participation have already been codified in the UNECE Aarhus Convention,⁶¹ which is open to accession for all countries including non-UNECE countries.⁶² The three articles of the draft Pact generally repeat the obligations of the Aarhus Convention without being as precise and concrete (e.g. without defining specific exemptions to the access to information for confidential business information).⁶³ Due to the lack

60 On the multiple questions arising in that context (with the examples of agreements without distinction between Parties, agreements with similar obligations for all Parties, but financial assistance to some and agreements with different obligations, e.g. longer phase-out periods), see *Biniáz*, *supra* note 27, at pp. 7–8.

61 Aarhus Convention on Access to Information, Public Participation in Decision-making and Access to Justice in Environmental Matters, 25 June 1998, UNTS 447 ('Aarhus Convention').

62 Also outside the scope of the Aarhus Convention, an increasing importance of participation in environmental matters can be observed e.g. in Latin America, see *El País*, 'Acceso a la información y participación pública en materia de cambio climático: Los avances en América Latina', August 22, 2016, <https://www.elpais.cr/2016/08/22/acceso-a-la-informacion-y-participacion-publica-en-materia-de-cambio-climatico-los-avances-en-america-latina/> [last visited December 11, 2017].

63 *Biniáz*, *supra* note 27, at p. 7.

of a conflict clause, the draft Pact leaves the question whether it will override provisions of the Aarhus Convention unresolved.⁶⁴

One peculiarity of the Aarhus Convention is the ability of the public to participate in mechanisms of the Convention itself. The compliance mechanism of the Convention allows for complaints by the public.⁶⁵ The involvement of the public in the procedural works of a convention can render such a convention into a true 'living agreement'. Article 14 of the draft Pact foresees the *involvement* of non-State actors in the implementation of the Pact; however, it does not foresee their *participation* in mechanisms of the Pact. It states that 'Parties shall take the necessary measures to encourage the implementation of this Pact by non-State actors'. Therefore, the draft Pact articulates the fact that States alone will not be able to implement the obligations of the Pact, but will need the involvement of non-State actors.⁶⁶

5 Establishment of New Environmental Principles: Effectiveness of Environmental Laws, Non-regression and Resilience

Beside the codification of existing environmental principles, the draft Pact introduces new principles, which will briefly be introduced.

Article 15 calls for the adoption of 'effective environmental laws' and 'their effective and fair implementation and enforcement'. Even though States were already asked by the Rio Declaration in Principle 11 to 'enact effective environmental legislation', this provision would probably not fall under the series of acknowledged environmental principles. From a law-making point of view, the provision addresses indeed an essential goal. However, it is to be discussed what the Pact regards as effective as different approaches to assess the effectiveness of a norm exist.⁶⁷ As the draft Pact generally asks for the adoption of 'effective environmental laws', but in addition requires their effective implementation and enforcement, it seems that the Pact comprises both the institutional

⁶⁴ *Id.*

⁶⁵ See Article 15 of the Aarhus Convention. Another example of public participation in the application of a convention is the North American Agreement on Environmental Cooperation, 17 September 1992, 32 ILM 1519 ('NAFTA Environmental Side Agreement').

⁶⁶ The interplay between the obligation of States to encourage the implementation of the Pact by individuals/non-State actors and the individual duty to take care of the environment in Article 2 of the draft Pact is left open.

⁶⁷ On the distinction between environmental and institutional effectiveness see M. Schroeder, *Die Koordinierung der internationalen Bemühungen zum Schutz der Umwelt*, 2005, pp. 22–24.

effectiveness of a norm as well as the environmental effectiveness. According to the latter, a norm is only regarded as effective when it regulates sufficiently the environmental problem at hand.

Article 17 introduces the 'principle of non-regression'.⁶⁸ It foresees that 'Parties and their sub-national entities refrain from allowing activities or adopting norms that have the effect of reducing the global level of environmental protection guaranteed by current law.' Whereas the idea of this principle is clear, namely to avoid backsliding of environmental legislation, the article nevertheless raises the question whether the abolition of existing environmental legislation would be allowed at all and if so, under what circumstances (e.g. if the legislation has proven to be ineffective and therefore contravenes Article 15 of the Pact). Referring to the 'global level of environmental protection' to be uphold one could even think that a 'trade' between countries is intended (country A enacts legislation to protect the environment which allows country B to abolish existing legislation). The idea of non-regression is close to the 'principle of progression' of the Paris Agreement⁶⁹ according to which the subsequent 'nationally determined contributions' of the Parties represent a progression in order to finally achieve the long-term goal of the Paris Agreement, namely to hold the increase in the global average temperature well below 2°C above pre-industrial levels.⁷⁰ However, unlike the Paris Agreement, which leaves the implementation of the notified contribution in national legislation at the discretion of the Parties, the principle of non-regression addresses national legislation directly. The idea of non-regression of environmental efforts seems appealing. It remains to be seen whether States would be willing to commit to it despite its described uncertainties.

The third new environmental principle in the draft Pact is the 'principle of resilience' in Article 16. It obliges Parties to 'take necessary measures to maintain and restore the diversity and capacity of ecosystems and human communities to withstand environmental disruptions and degradation and to recover and adapt.' Being a new concept, which has only recently been introduced in

68 For further reading see *M. Prieur, De L'urgente Nécessité de Reconnaître Le Principe de "Non-Régression" en Droit De L'Environnement*, IUCN Acad. Env'tl. L. eJournal (2011), pp. 26 et seq.

69 Annex to Decision 1/CP.21, UN Doc. FCCC/CP/2015/10/Add.1 ('Paris Agreement').

70 Article 4 para. 3 of the Paris Agreement reads: 'Each Party's successive nationally determined contribution *will represent a progression* beyond the Party's then current nationally determined contribution [...]'; Article 3 sentence 2 of the Paris Agreement states: 'The efforts of all Parties *will represent a progression over time* [...].'

the discourse on environmental protection,⁷¹ its interpretation is still unclear. This principle introduces an obligation of conduct to the Parties to take necessary measures for the maintenance and restoration of ecosystems. Due to its abstract formulation, the provision leaves it, nevertheless, unresolved *what* measures are to be taken by the Parties. Besides, when it comes to measures concerning adaptation, the question arises whether this may alter adaptation-related obligations of the climate change regime.⁷²

6 Environment in Relation to Armed Conflicts

Lastly, the Global Pact also touches upon the protection of the environment in relation to armed conflicts. By this means, Article 19 of the Global Pact obliges States to 'take pursuant to their obligations under international law all feasible measures to protect the environment in relation to armed conflicts.'⁷³ The key question, namely, which international obligations exist during armed conflicts, remains unresolved.⁷⁴ Whereas the core obligations of *jus in bello* are anchored amongst others in Articles 35 and 55 of the Additional Protocols to the Geneva Conventions,⁷⁵ many questions relating to environmental protection during international as well as non-international armed conflicts, such as the existence of customary rules⁷⁶ and the question to what extent environmental agreements remain applicable, are still under discussion.⁷⁷ In order to take

71 For further reading see *N.A. Robinson*, The Resilience Principle, 5 *IUCN Acad. Env'tl. L. eJournal* 19 (2014), p. 19, 20, <http://digitalcommons.pace.edu/lawfaculty/953/> [last visited December 8, 2017].

72 *Biniatz*, *supra* note 27, at p. 6.

73 The wording of Article 19 is close to Draft Principle 4 para. 1 of the draft principles provisionally adopted by the ILC at its 68th session in 2016 in relation to the ongoing works on 'Protection of the environment in relation to armed conflicts', see <http://legal.un.org/docs/index.asp?symbol=A/CN.4/L.876> [last visited December 12, 2017].

74 On the challenge of identifying the existing law relating to environmental protections in armed conflicts, see *D. Bodansky*, *Legal Regulation of the Effects of Military Activity on the Environment*, 2003, p. 19.

75 Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of International Armed Conflicts, 8 June 1977, 1125 UNTS 3 ('Additional Protocol I') and Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of Non-International Armed Conflicts, 8 June 1977, 1125 UNTS 609 ('Additional Protocol II').

76 *Dupuy & Viñuales*, *supra* note 14, at pp. 341 et seq.

77 See the ongoing works of the ILC on the topic at: http://legal.un.org/ilc/guide/8_7.shtml [last visited December 12, 2017].

into account future developments of international law in relation to armed conflicts, the insertion of a dynamic reference in the provision would make it clearer that the provision is not limited to a reference to the status quo.

7 Relationship between the Pact and Existing Multilateral Environmental Agreements and Institutions

As seen from some of the examples above, it is necessary to analyse how the Global Pact for the Environment would interplay with existing multilateral environmental agreements. As environmental problems are manifold, numerous multilateral environmental agreements exist. They address specific environmental issues⁷⁸ or regulate environmental issues in a specific context or region.⁷⁹ The draft Pact is not designed to replace those agreements, as it does not contain specific obligations but rather abstract environmental principles. The coexistence of the draft Pact with existing international agreements may however affect these existing agreements.

According to the White Paper, the Pact shall lay down 'in a single text the principles common to the whole of the subject-matter. The special conventions would then be analysed *de facto* as the declensions of general principles in particular fields.'⁸⁰ The Pact is hence intended to serve as a 'general rule' when interpreting a particular provision of an environmental agreement and to provide an overarching umbrella or framework for the specific conventions.

This raises two issues, from a political perspective whether this is desired and from a legal perspective whether this would be legally feasible.

First, the existing multilateral environmental agreements constitute the outcome of long political negotiations that found a careful balance between the different interests of all States involved.⁸¹ The interpretation of an existing

78 To name just a few examples: The Vienna Convention for the Protection of the Ozone Layer of 1985 with the 1987 Montreal Protocol regulating substances that deplete the ozone layer, the recently adopted Minamata Convention on Mercury of 2013 or the Convention on International Trade in Endangered Species of Wild Fauna and Flora of 1973 (CITES).

79 Such as the UNECE Conventions or agreements relating to specific areas such as the Barcelona Convention for the Protection of the Mediterranean Sea against Pollution of 1995.

80 'White Paper', *supra* note 6, at p. 26. However, the draft pact is not designed as framework convention foreseeing the adoption of protocols under it.

81 Biniaz, *supra* note 27, at pp. 2–3. Most striking is the case of the Paris Agreement; an overview of the 'road to Paris' is available at: https://ec.europa.eu/clima/policies/international/negotiations/progress_en [last visited December 10, 2017].

agreement in the light of the Pact might interfere with this balance found in the particular agreement and reopen negotiations on questions which were already concluded. Therefore, the aim of creating more coherence through giving the Pact an interpretative function towards existing agreements might already not be desirable, at least not in all cases. Second, from a legal point of view, this will also prove to be difficult. Taking into account broad concepts such as sustainable development in the interpretation of a treaty clause does not necessarily facilitate the interpretation of an unclear treaty term.⁸² In addition, the interpretation of existing treaties is to be undertaken by the Parties of the existing treaty, which requires consensus of the Parties of the existing treaty.⁸³ The consensus of the Parties to the Pact could only be taken into account if the Parties to the Pact would be identical to the Parties of the respective existing treaty, which constitutes a high barrier given the great amount of States involved in multilateral environmental agreements.⁸⁴ Lastly, the interpretation of existing agreements has its limits, as it is to be applied to unclear provisions and not to be used to amend agreed treaties through the backdoor.⁸⁵

Moreover, the idea of placing the existing environmental agreements in some way under the 'umbrella' of an overarching Pact would require the approval of the Parties of the existing agreements, as the existing agreements constitute autonomous regimes.⁸⁶ In the past, even smaller attempts of creating synergies between existing environmental agreements, such as the currently discussed integration of the Secretariat of the Minamata Convention into the Secretariat of the (still autonomous) Basel, Rotterdam and Stockholm Conventions, has proven to be difficult.⁸⁷

Therefore, even though the aim of the draft Pact is to be an overarching treaty inserting general principles that will be broken down into the specific agreements and thereby leading to more coherence of environmental governance, the Pact can *de facto* only become a new multilateral treaty that co-exists and possibly conflicts with existing multilateral environmental agreements.

82 N. Matz, Approaches to the Coordination of International Environmental Agreements, in: R. Wolfrum & N. Matz, Conflicts in International Environmental Law, 2003, p. 137.

83 *Id.* at p. 140.

84 *Id.* at p. 142.

85 *Id.* at p. 141.

86 Churchill/Ulfstein, Autonomous Institutional Arrangements, AJIL 94 (2000), p. 623.

87 See the report of the first Conference of the Parties to the Minamata Convention at: <http://enb.iisd.org/vol28/enb2847e.html> [last visited December 15, 2017].

Furthermore, as the draft Pact currently does not contain a conflict clause, the Pact as *lex posterior* may be interpreted as overriding provisions of existing treaties at least to the extent of their incompatibility.⁸⁸ To address this risk, a conflict clause clarifying that existing rights and obligations would not be modified by the Pact, is essential. This clause might, however, considerably limit the scope of application of the Pact as many environmental issues are already governed by existing agreements, for instance the Pact would then not cover questions related to climate change.

With regard to the relation of the Pact with existing institutions, the Pact proposes in Article 22 that its Secretariat shall either be provided by the Secretary-General of the United Nations or by the Executive Director of the United Nations Environment Programme (UNEP). In order to ensure coherence in environmental governance, the integration of the Pact within UNEP is preferable, as UNEP constitutes the central international institution dealing with environmental protection. Another element to ensure institutional coherence could be to assign to the just recently created United Nations Environmental Assembly (UNEA) a central 'overseeing' role, such as serving as the meeting of the Parties of the Pact.

8 Contribution to the Strengthening of International Environmental Law

The draft Pact is not designed to close existing regulatory gaps of international environmental law. For instance, looking at the prominent example of the increasing plastics pollution of the oceans, the adoption of the Pact would not necessarily lead to the adoption of policies to reduce the production, consumption or waste of plastics, as no provision in the Pact would require States to do so.

With the principles of the Pact being drafted in a rather abstract language, their codification will not contribute to an improved application of the principles. As a general observation, the strengthening of international environmental law is rather to be undertaken by improving its implementation than by the addition of new norms.

As the proclaimed aim of the initiative is to strengthen international environmental law as well as its implementation, the initiative might, however, be able to trigger a policy dialogue on how to achieve this best. With the political

⁸⁸ *Biniarz, supra* note 27, at pp. 5–6. For the application of successive treaties relating to the same subject-matter, see Article 30 of the Vienna Convention on the Law of Treaties.

backing of the initiative, it might be able to overcome various obstacles in the existing treaty regimes – such as the lack of compliance mechanisms in some treaties – and thereby lead to a substantial improvement of international environmental law.

Furthermore, the idea of the Pact is that a newly created constitutional base for environmental issues at international level would give environmental considerations a higher priority.⁸⁹ Giving the conservation of the environment a fundamental base in the international legal order would certainly be an important step towards raising the profile of environmental considerations. A new environmental treaty – even an overarching one – could, however, end up being side-lined by other policies. To overcome this risk, environmental protection needs to be better integrated in the core of economic policies such as in international trade agreements. Additionally, and building on the idea of a constitutional base in the international legal order, it might be worth thinking of integrating the protection of the environment even in the Charter of the United Nations.

9 Conclusion

The ‘Global Pact for the Environment’ represents an ambitious attempt to step up the efforts to tackle global environmental degradation.

The provisions in the draft Pact cover a broad range of principles and rights, some of which will be more controversial than others. The establishment of a new human right relating to the environment is anticipated to be the most controversial. The codification of other, existing environmental principles in an overarching treaty gives rise to some legal concerns. The relationship of the abstract provisions and principles in the Pact with more specific provisions contained in existing international environmental agreements would need to be resolved through a conflict clause. Such a conflict clause would also have to address the potential risk of overriding and potentially weakening existing agreements. However, a new environmental agreement designed to operate alongside existing agreements, will not lead to more coherent environmental governance. Whether the Pact could actually strengthen international environmental law remains to be seen and will largely depend on whether the principles in the draft Pact will become more precise during the negotiations. Experience of international negotiations show, however, that there is a high risk of provisions being watered down during the course of negotiations.

89 ‘White Paper’, *supra* note 6, at p. 19.

Nevertheless, the initiative responds to an important concern, namely that at the current pace of international environmental law-making and with the insufficiency of its implementation, the increasing scale and rate of environmental degradation will not be reduced. The initiative – being able to win high-level political support – might trigger reforms in existing treaty regimes and thereby contribute to the strengthening of international environmental law and its implementation.